

CHAPTER 29.

An Act to make further provision with respect to the University of Durham and its constituent divisions and colleges. [2nd August 1935.]

WHEREAS by His Warrant dated the sixteenth day of March, nineteen hundred and thirty-four, His Majesty was pleased to appoint a Commission to inquire into the organisation and work of the University of Durham (in this Act referred to as "the University") and its constituent colleges and into the relation of the University to those colleges, and to report in what respects the present organisation could be improved and what changes, if any, were desirable in the constitutions, functions and powers of the University and its constituent colleges:

And whereas in their report (in this Act referred to as "the report of the Commission") the said Commission have made recommendations with respect to the matters aforesaid and in particular have recommended that Statutory Commissioners should be appointed to make new statutes for the University and to provide for the detailed organisation and administration of the University and its constituent parts:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same as follows:—

Appoint-
ment of
Commis-
sioners.

1.—(1) There shall be a body of Commissioners to be styled "the University of Durham Commissioners" consisting in the first instance of the following persons, namely:—

The Reverend Frederick Homes Dudden, Doctor in Divinity, Master of Pembroke College in the University of Oxford, Canon of the Cathedral Church of Gloucester;

The Right Honourable Mabel Laura Georgiana, Countess Grey, C.B.E.;

Sir Wilberforce Ross Barker, K.C.I.E., C.B.;

Joseph Hubert Priestley, Esquire, D.S.O., Professor of Botany in the University of Leeds;

Charles Williams, Esquire, O.B.E., Master of Arts, of Monkseaton, in the county of Northumberland;

George Redmayne Murray, Esquire, Doctor of Medicine, Doctor of Civil Law, Fellow of the Royal College of Physicians;

Thomas Franklin Sibly, Esquire, Doctor of Science, Doctor of Laws, Vice-Chancellor of the University of Reading;

Alexander Wood, Esquire, Doctor of Science, Fellow and Tutor of Emmanuel College in the University of Cambridge.

(2) If and whenever a vacancy occurs among the Commissioners, His Majesty may by Order in Council appoint a person to fill the vacancy, but every such Order shall be laid before both Houses of Parliament within ten days after it is made if Parliament be then sitting or, if not, then within ten days after the next sitting of Parliament.

2.—(1) The Commissioners may, with the consent of the Treasury as to number, employ such persons as they think necessary for the execution of their duties under this Act.

Staff and expenses of Commissioners.

(2) There shall be paid to any person employed by the Commissioners such remuneration as the Treasury may determine, and all expenses incurred by the Commissioners in the execution of this Act, including the remuneration aforesaid, shall to an amount approved by the Treasury be paid out of moneys provided by Parliament.

3.—(1) Subject as hereinafter provided, the powers of the Commissioners shall continue in force until the end of the year nineteen hundred and thirty-six and no longer:

Duration of powers of Commissioners and proceedings thereof.

Provided that His Majesty in Council may, on the application of the Commissioners, continue their powers for such period as His Majesty may think fit, but not beyond the end of the year nineteen hundred and thirty-seven.

(2) The Commissioner first named in this Act shall be the chairman of the Commissioners, and, in case of his ceasing from any cause to be a Commissioner or of his absence at any meeting, the Commissioners present at each meeting shall choose a chairman.

(3) The powers of the Commissioners may be exercised at a meeting at which three or more Commissioners are present.

(4) In case of an equality of votes on a question at a meeting, the chairman of the meeting shall have a second or casting vote in respect of that question.

(5) The Commissioners shall have a common seal which shall be judicially noticed.

(6) An act of the Commissioners shall not be invalid by reason only of any vacancy in their number, but, if at any time and so long as the number of persons acting as Commissioners is less than four, the Commissioners shall discontinue the exercise of their powers.

Power and
duties of
Commis-
sioners.

4.—(1) Subject to the provisions of this Act, the Commissioners shall make statutes for the University, for the Durham and Newcastle divisions thereof, and for the colleges of the Newcastle division, in general accordance with the recommendations contained in the report of the Commission, subject to any modifications which may appear to them to be expedient, and, so far as may be necessary for giving effect to any of the said recommendations, the Commissioners may make statutes for any college of the Durham division of the University, and in particular (but without prejudice to the generality of the foregoing provisions of this subsection) the Commissioners may make statutes—

- (a) dissolving the two corporations known as the University of Durham College of Medicine and Armstrong College, Newcastle-upon-Tyne, in the University of Durham, and constituting one corporation in lieu thereof, and transferring to the last-mentioned corporation the property and liabilities (including any property and liabilities vested or arising under any trust) of the dissolved corporations, and providing for any matter incidental to or consequential on the

dissolution or constitution of those corporations or the said transfer; and

- (b) providing for the transfer of any other property so far as is necessary for giving effect to any of the said recommendations.

(2) The Commissioners shall, before adopting any final resolution for the making of a statute under this Act, take such steps as are in their opinion best adapted for facilitating the making of representations with respect to the proposed statute, and shall in particular consider any representations made to them by or on behalf of any persons appearing to the Commissioners to be directly affected by the proposed statute.

(3) The Commissioners shall have power to take such evidence as they may think necessary for the exercise of their powers and for the performance of their duties under this Act.

5.—(1) No statute or part of a statute made under this Act shall have effect until it has been approved by His Majesty in Council, but every statute or part of a statute so approved shall have effect notwithstanding anything in any Act of Parliament, charter, deed, or other instrument whatsoever.

Approval
and effect of
statutes.

(2) The provisions contained in the Schedule to this Act shall have effect with respect to the submission of statutes made under this Act for the approval of His Majesty in Council and with respect to statutes so submitted.

6.—(1) Statutes made by the Commissioners shall contain provisions enabling the University after the cesser of the powers of the Commissioners to alter or supplement any provision of any statute made by them or by any other authority, except the enabling provisions aforesaid.

Power to
amend and
supplement
statutes.

(2) The provisions contained in this Act with respect to the making of statutes by the Commissioners and to the proceedings to be taken after the making thereof in connection with statutes made by the Commissioners, and, subject as may be provided by any statutes made by the Commissioners, to the effect thereof after approval shall, with the necessary substitutions,

apply to the making of statutes by the University and to the proceedings to be taken in connection with statutes made by the University, and, subject as aforesaid, to the effect of such statutes.

Short title.

7. This Act may be cited as the University of Durham Act, 1935.

Section 5.

SCHEDULE.

PROVISIONS WITH RESPECT TO THE SUBMISSION OF STATUTES FOR THE APPROVAL OF HIS MAJESTY IN COUNCIL AND WITH RESPECT TO STATUTES SO SUBMITTED.

1. The Commissioners within one month after making a statute shall cause it to be submitted to His Majesty in Council, and notice of the submission of the statute and of the place where copies of it can be obtained shall be published in the London Gazette (in this Act referred to as the gazetting of a statute), and if after a statute has been so gazetted the powers of the Commissioners under this Act cease to be in force, the cesser of the powers of the Commissioners shall not affect the subsequent proceedings under this Act respecting the statute.

2. At any time within eight weeks (exclusive of any University vacation) after the gazetting of a statute any person directly affected by the statute may petition His Majesty in Council for disallowance of the statute or of any part thereof.

3.—(1) It shall be lawful for His Majesty in Council to refer any statute petitioned against under this Act to a committee of the Privy Council with a direction that the committee hear the petitioner personally or by counsel and report specially to His Majesty in Council on the matter of the petition.

(2) The costs of any such petition as aforesaid may be regulated by the committee to which the petition is referred, and any order of the committee respecting costs shall be enforceable as if it were an order made in proceedings in the Supreme Court.

4. Subject as hereinafter provided, every statute made under this Act shall be laid before both Houses of Parliament as

soon as may be after the expiration of the time for petitioning against it, or, in the case of a statute referred under this Act to a committee of the Privy Council, as soon as may be after the report of the committee thereon, and if either House within four weeks (exclusive of any period of prorogation) after a statute has been laid before it presents an Address praying His Majesty to withhold his approval from a statute or any part thereof no further proceedings shall be taken on the statute or on the part thereof to which the Address relates, but this provision shall be without prejudice to the making of a new statute :

Provided that, if His Majesty, on the report of a committee of the Privy Council, declares his disapproval of any statute, it shall not be necessary to lay that statute before Parliament, and if His Majesty so declares his disapproval of a part only of any statute, that part may be omitted from the statute as laid before Parliament.

5. His Majesty's approval or disapproval of any statute or of any part of a statute made under this Act may be declared by Order in Council, and any such disapproval shall be without prejudice to the making of a new statute.

CHAPTER 30.

An Act to amend the law relating to the capacity, property, and liabilities of married women, and the liabilities of husbands; and to amend the law relating to proceedings against, and contribution between, tort-feasors.

[2nd August 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

CAPACITY, PROPERTY, AND LIABILITIES OF MARRIED WOMEN; AND LIABILITIES OF HUSBANDS.

1. Subject to the provisions of this Part of this Act, and subject, as respects actions in tort between husband Capacity of
married
women.